

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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GAMALIER REYES

10-CV-3146 (BMC)

Plaintiff,

vs.

**AMENDED
COMPLAINT**

THE CITY OF NEW YORK, Police Officers John Aluska,
Andrew Bedell, Jackie Farina, Salvatore Grippi, JOHN DOE
and RICHARD ROE (names and number of whom are
unknown at present), and other unidentified members of
the New York City Police Department

Defendants.

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PRELIMINARY STATEMENT

1. This is an action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth Amendment to the United States Constitution, and the laws of the State of New York. On April 11, 2009, plaintiff was assaulted by police officers and sustained facial fractures after police officers responded to his home. Plaintiff was deprived of his constitutional and common law rights when the individual defendants committed an unwarranted and malicious assault and battery on plaintiff.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§1983 and 1988, and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (3) and (4) and the aforementioned statutory and constitutional provisions.

3. The plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. §1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that give rise to the federally based claims and causes of action.

VENUE

4. Venue is proper for the United States District Court for the Eastern District of New York pursuant to 28 U.S.C. § 1391, (a), (b) and (c) and § 1402(b) because the claims arose in this district .

PARTIES

5. The plaintiff, Gamalier Reyes, was twenty six years old at the time of this incident.

6. New York City Police Officers John Aluska, Andrew Bedell, Jackie Farina, Salvatore Grippi, and John Doe and Richard Roe are and were at all times relevant herein officers, employees and agents of the New York City Police Department. The defendant police officers are being sued herein in their individual and official capacity.

7. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department and otherwise performed and engaged in conduct incidental

to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

9. On April 11, 2009, plaintiff was at his home located at 262 Irving Avenue, Brooklyn, New York.

10. Plaintiff suffers from a bipolar disorder, and because he was not well, his family contacted plaintiff's social worker.

11. Plaintiff's social worker recommended that plaintiff be taken to Woodhull Hospital where plaintiff is regularly treated for his psychiatric disorder.

12. The social worker called 911 and requested that an ambulance respond to plaintiff's home to transport him to the hospital.

13. The social worker informed the 911 operator that plaintiff was an emotionally

disturbed person.

14. Shortly after the 911 call numerous police officers responded to plaintiff's home.

15. Plaintiff's family explained to the officers that they wanted an ambulance to take plaintiff to the hospital in order that he could be treated for his psychiatric condition.

16. Instead of waiting for the ambulance and the emergency medical technicians to arrive defendant police officers entered plaintiff's home.

17. While inside the home the defendant police officers asked plaintiff to go with them.

18. When plaintiff refused they rushed him and proceeded to strike and punch plaintiff about his face and body.

19. Plaintiff was beaten so severely by the defendant police officers that he sustained facial fractures.

20. The assault on plaintiff, as described above, by the defendant police officers was far in excess of their rightful authority as New York City police officers. This assault on plaintiff was made without proper cause.

21. The assault and battery on plaintiff by defendants caused plaintiff to sustain pain and suffering and psychological and emotional trauma.

22. A notice of claim was served on the Comptroller of the City of New York and at least thirty days have elapsed since the service of such notice and adjustment and/or payment has been neglected and/or refused.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment Rights

23. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 22 with the same force and effect as if more fully set forth at length herein.

24. The use of excessive force by defendant police officers in striking plaintiff about the face and body was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth Amendment to the United States Constitution.

SECOND CAUSE OF ACTION

Assault

25. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 24 with the same force and effect as if more fully set forth at length herein.

26. The defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such act(s) caused apprehension of such contact in the plaintiff.

27. Defendant police officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

28. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

THIRD CAUSE OF ACTION

Battery

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. The defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck and beat the plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

31. Defendant police officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

32. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the defendant police officers, individuals who were unfit for the performance of police duties on April 11, 2009, at the

aforementioned location.

35. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

JURY DEMAND

36. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for relief as follows:

a. That the jury find and the Court adjudge and decree that plaintiff shall recover compensatory damages in the sum of \$1,000,000, against the individual defendants and the City of New York, jointly and severally, together with interest and costs; and punitive damages in the sum of \$1,000,000 against the individual defendants, jointly and severally.

b. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. §1988.

c. That the plaintiff have such other and further relief as the Court shall deem just and proper.

DATED: October 25, 2010
 New York, New York

A handwritten signature in dark ink, appearing to read 'Earl S. Ward', is written over a horizontal line.

EARL S. WARD, ESQ. (EW 2875)
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